

25STCV33103 25STCV33103

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-23

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Case Number: 25STCV33103 Hearing Date: June 23, 2026 Dept: 529

ARTURO TOPETE

vs GENERAL MOTORS, LLC

motion for compliance

and sanctions

Date of Hearing: June

24, 2026 Trial

Date: None

set.

Department: 529 Case

No.: 25STCV33103

Moving Party:

Defendant General Motors LLC

Responding Party: Plaintiff

Arturo Topete

BACKGROUND

This

is a lemon law action. On November 12, 2025, Plaintiff Arturo Topete filed a complaint against Defendant General Motors LLC for various violations of the Song-Beverly Consumer Warranty Act.

[Tentative] Ruling

Defendant General Motors LLC's Motion

for Compliance and Sanctions is granted, in part.

DISCUSSION

Defendant General Motors LLC moves this

court for an order for compliance requiring Plaintiff Arturo Topete to schedule

and conduct the deposition mandated under Code of Civil Procedure section

871.26(c) on the grounds Plaintiff's deposition has not yet been conducted. GM

also moves for the imposition of sanctions against Plaintiff's counsel in the

amount of \$1,500.00.

Effective January 1, 2025, in an action

seeking restitution or replacement of a motor vehicle pursuant to Section

871.20 (above), the parties shall: "Within 60 days after the filing of the

answer or other responsive pleading, ... without awaiting a discovery request,

provide to all other parties an initial disclosure and documents pursuant to

subdivisions (f), (g), and (h) [of Section 871.26].” (CCP § 871.26(b).) “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours.” (CCP 871.26(c).)

GM contends it filed its answer to Plaintiff’s complaint on January 2, 2026, which put Plaintiff’s deposition due on May 4, 2026. (Kay Decl. ¶4.) On January 2, 2026, GM also sent a noticed deposition for April 2, 2026 as well as a meet-and-confer letter asking that Plaintiff provide alternative deposition dates within 14 days if Plaintiff was unavailable on the noticed date. (Kay Decl. ¶¶5-6, Exh. A.) On the date of the deposition, Plaintiff asked for the remote link for Plaintiff’s deposition. (Kay Decl. ¶7.)

GM did not intend to proceed with the deposition remotely and mistakenly neglected to insert a deadline to confirm whether Plaintiff had objected or would be appearing for the noticed deposition on April 2, 2026. (Kay Decl. ¶5.) As GM’s Counsel was unaware of the erroneously served deposition notice, GM’s Counsel withdrew the deposition notice five minutes prior to the time at which the deposition was noticed to proceed, alerting Plaintiff’s Counsel to an amended notice that would be forthcoming. (Kay Decl. ¶7.) Plaintiff’s Counsel then stated that they would not be producing their client for a “second” deposition unless GM demonstrated “good cause”. (Kay Decl. ¶7.) Upon apologizing for any

inconvenience, GM's counsel followed up with Plaintiff's counsel regarding the scheduling of Plaintiff's deposition, noting that GM had not received Plaintiff's alternative dates for deposition. (Kay Decl. ¶¶7-9.)

In opposition, Plaintiff argues this

motion is without merit. Plaintiff has been willing to submit to a deposition.

Plaintiff has simply asked Defendant to compensate Plaintiff and his counsel

for the time and fees incurred in preparing for Plaintiff's deposition that was

cancelled five minutes prior to the start time. Defendant refused. Plaintiff

also contends Defendant made no effort to meet and confer with Plaintiff.

While both parties are supposedly

amenable to taking the deposition of Plaintiff, the deposition has not yet

occurred. This motion could have been avoided if the parties were truly open to

complying with Code of Civil Procedure section 871.26. The court orders the deposition to go forward

within the next 45 days.

Sanctions

Both parties seek sanctions. GM seeks

sanctions pursuant to Code of Civil Procedure section 871.26(j)(2). However,

those are only mandatory unless Plaintiff has shown good cause. The court finds

Plaintiff has shown good cause.

Plaintiff also seeks sanctions pursuant

to Code of Civil Procedure section 2025.480 on the basis GM did not act with substantial justification. The court denies the request for sanctions. While GM worked on rescheduling the deposition notice, it is the one who canceled 5 minutes before the set deposition.